

Section 26.

THIRD SCHEDULE.

ENACTMENTS REPEALED.

Session and Chapter.	Short Title.	Extent of Repeal.
34 & 35 Vict. c. 105.	The Petroleum Act, 1871	The whole Act.
42 & 43 Vict. c. 47.	The Petroleum Act, 1879	The whole Act.
13 & 14 Geo. 5. c. 4.	The Fees (Increase) Act, 1923.	Section four.
16 & 17 Geo. 5. c. 25.	The Petroleum Act, 1926	The whole Act.
18 & 19 Geo. 5. c. 20.	The Petroleum (Amendment) Act, 1928.	The whole Act.

CHAPTER 33.

An Act to amend the law relating to the closing of shops; and for purposes connected therewith. [3rd August 1928.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Closing
hours.

1.—(1) Every shop shall, save as otherwise provided by this Act, be closed for the serving of customers not later than nine o'clock in the evening on one day in the week (in this Act referred to as "the late day"), and not later than eight o'clock in the evening on any other day in the week, and those hours are in this Act referred to as the "general closing hours."

(2) The late day shall be Saturday unless the local authority by order fix some other day as the late day,

and any such order may fix the same day for all shops, or may fix—

- (a) different days for different classes of shops ; or
- (b) different days for different parts of the district ;
or
- (c) different days for different periods of the year :

Provided that, where the local authority have under the Shops Act, 1912 (hereinafter referred to as “the principal Act”), fixed any day as the weekly half-holiday for any class of shop, or for any part of their district, or for any period of the year, they shall, as respects that class, part, or period, fix some other day as the late day. 2 & 3 Geo. 5.
c. 3.

(3) Nothing in this Act or in any closing order made under the principal Act shall prevent—

- (a) the serving of a customer where it is proved that the customer was in the shop before the closing hour, or that reasonable grounds existed for believing that the article supplied after the closing hour to a customer was required in the case of illness ; or
- (b) any transaction mentioned in the First Schedule to this Act.

2. Subject as hereinafter provided, as respects the trade or business of selling table waters, sweets, chocolates, or other sugar confectionery or ice cream, the general closing hours shall be ten o'clock in the evening on the late day and half-past nine o'clock in the evening on any other day : Special pro-
visions as to
confec-
tionery.

Provided that a local authority may, in their area or in any part thereof, by order substitute for either of the general closing hours hereinbefore in this section mentioned an earlier hour, not being earlier than eight o'clock in the evening, if they are satisfied that such an order is desired by the occupiers of a majority of the shops to be affected by the order.

3. As respects the trade or business of selling tobacco and smokers' requisites, a local authority may, in their area or in any part thereof, by order substitute for the general closing hours fixed by this Act later hours, not being later than ten o'clock in the evening on the late day or half-past nine o'clock in the evening on any other day, if they are satisfied that such an order is desired Special pro-
visions as to
tobacco and
smokers'
requisites.

by the occupiers of at least two-thirds in number of the shops to be affected by the order.

Saving as
to closing
orders.

4. Save as in this Act otherwise expressly provided, nothing in this Act shall affect—

- (a) any closing order in force at the commencement of this Act fixing closing hours earlier than the general closing hours fixed by or under the provisions of this Act; or
- (b) the power of a local authority by a closing order made and confirmed in manner provided by the principal Act to fix, subject to the limits imposed by that Act, closing hours earlier than the general closing hours fixed by or under the provisions of this Act:

Provided that any closing order, whether made before or after the commencement of this Act, shall be of no effect in so far as it authorises sales after the general closing hours fixed by or under the provisions of this Act or contains provisions inconsistent with the provisions of this Act.

Power to
grant ex-
emption in
respect
of exhibi-
tions.

5.—(1) As respects any retail trade or business carried on at an exhibition or show within the area of a local authority, the local authority may by order substitute for the general closing hours fixed by or under this Act, or for any closing hour fixed by a closing order made under the principal Act, later hours, not being later than ten o'clock in the evening, if they are satisfied that the retail trade or business so carried on is subsidiary or ancillary only to the main purpose of the exhibition or show.

(2) Any order under this section shall be made subject to such conditions as the local authority may consider necessary for securing that shop assistants affected by the order shall not be employed in or about the retail trade or business to which the order relates for more than such number of hours as may be specified by the order.

Special pro-
visions as
to holiday
resorts and
sea fishing
centres.

6.—(1) In places frequented as holiday resorts during certain seasons of the year, and in places where sea fishing is principally carried on during certain seasons of the year, the local authority shall by order, during such period as may be specified in the order, substitute for the general closing hours fixed by or under this Act

such later hours as they may think fit if, upon application being made to them for an order under this section, they are satisfied that such an order is desired by the occupiers of a majority of the shops to be affected by the order:

Provided that the local authority shall not in any year by orders under this subsection substitute later hours for the closing hours fixed by this Act for periods exceeding four months in the aggregate in that year.

(2) Any order under this section—

- (a) may be made so as to apply to the whole or to any part of the area of the local authority, and to all shops, or to shops of any class, within that area or part; and
- (b) shall be made subject to such conditions as the local authority may consider necessary for securing that shop assistants affected by the order shall not be employed in or about the business of a shop for more than such number of hours as may be specified by the order; and
- (c) may suspend the operation of any closing order made under the principal Act which is, for the time being, in force in the area of the local authority.

(3) If, while orders made under this section are in force, any shop assistant affected by any such order is, in any year, employed in or about the business of a shop for extra hours, he shall, subject to the provisions of the Second Schedule to this Act, be entitled to corresponding holidays, calculated in accordance with the provisions of that Schedule, with full wages; and if at the date of the termination of his employment or at the end of the year, whichever first occurs, default has been made in granting to him any holiday or wages to which he is entitled under this subsection, the shop assistant may recover as a debt due from the employer for every day's holiday in respect of which such default has been made a sum equal to one-sixth of the highest weekly rate of wages paid to him in respect of his employment in or about the business of the shop during the year or the part thereof during which he has been employed therein.

(4) For the purposes of this Act—

“Extra hours” means, in relation to any shop assistant, hours in excess of the customary working day, being hours after the general closing hours fixed by or under this Act otherwise than by an order made under this section;

“Customary working day” means, in relation to any shop assistant, the daily number of hours during which shop assistants of his class are, while unaffected by any order made under this section, customarily employed in or about the business of the shop in which he is employed;

“Full wages” means, in relation to any holiday granted to a shop assistant, wages at a rate equivalent to the rate of wages to which he was entitled immediately before the holiday.

Power to
suspend
operation of
Act and
closing
orders on
special
occasions.

7.—(1) The Secretary of State may by order for such periods as he thinks fit suspend the operation of the provisions of this Act relating to general closing hours during the Christmas season or in connection with any other special occasion, and while any order made under this subsection is in force the provisions of any closing order made under the principal Act shall be deemed to be suspended except in so far as may be otherwise directed by the order of the Secretary of State.

(2) Subject as hereinafter provided, a local authority may, in connection with any special occasion, by order suspend the operation of the provisions of this Act relating to general closing hours and the provisions of any closing order made by them under the principal Act for such period as they may think fit:

Provided that a local authority shall not in any year by orders under this subsection suspend the operation of the said provisions for more than seven days in the aggregate in that year.

Offences.

8. In the case of any contravention of or failure to comply with any of the provisions of this Act or of a closing order made under the principal Act, or in the case of any breach of a condition imposed by any order made

under this Act, the occupier of the shop shall be guilty of an offence against the principal Act and liable to a fine not exceeding—

- (a) in the case of a first offence, five pounds;
- (b) in the case of a second or subsequent offence, twenty pounds.

9. The amendments in the second column of the Third Schedule to this Act (being consequential amendments and amendments relating to matters of minor detail) shall be made in the provisions of the principal Act specified in the first column of that Schedule.

Consequential
and minor
amendments
of 2 Geo. 5.
c. 3.

10.—(1) This Act may be cited as the Shops (Hours of Closing) Act, 1928, and this Act and the Shops Acts, 1912 and 1913, may be cited together as the Shops Acts, 1912 to 1928.

Short title,
citation,
construc-
tion, extent
and repeal.

(2) Except where the context otherwise requires, references in this Act to the principal Act shall be construed as references to that Act as amended by this Act, and this Act shall be construed as one with the Shops Acts, 1912 and 1913.

(3) This Act shall not extend to Northern Ireland.

(4) The enactments mentioned in the Fourth Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule.

S C H E D U L E S.

FIRST SCHEDULE.

Section 1.

TRANSACTIONS NOT PREVENTED BY THIS ACT OR BY CLOSING ORDERS MADE UNDER THE PRINCIPAL ACT.

1. The sale after the closing hour of—

- (a) meals or refreshments (including table waters, sweets, chocolates, sugar confectionery, and ice cream), for consumption on the premises, or (in the case of meals or refreshments sold on railway premises) for consumption on the trains:

1ST SCH.
—cont.

Provided that—

(i) in the case of canteens attached to and situated within or in the immediate vicinity of any works, if persons are employed at such works after the closing hour, and the canteen is kept open only for the use of such persons, meals or refreshments may be sold after the closing hour for consumption anywhere within the works premises; and

(ii) for the purposes of the foregoing provisions tobacco supplied at a meal for immediate consumption shall be deemed to form part of the meal;

- (b) newly cooked provisions and cooked or partly cooked tripe to be consumed off the premises;
- (c) intoxicating liquors to be consumed on or off the premises;
- (d) tobacco, table water or matches on licensed premises during the hours during which intoxicating liquor is permitted by law to be sold on the premises;
- (e) tobacco, matches, table waters, sweets, chocolates, or other sugar confectionery or ice cream, at any time during the performance in any theatre, cinema, music hall, or other similar place of entertainment so long as the sale is to a bona fide member of the audience and in a part of the building to which no other members of the public have access;
- (f) medicine or medical or surgical appliances, so long as the shop is kept open only for such time as is necessary for serving the customer;
- (g) newspapers, periodicals and books from the book-stalls of such terminal and main line stations as may be approved by the Secretary of State;
- (h) aircraft, motor, or cycle, supplies or accessories for immediate use, so long as the shop is kept open only for such time as is necessary for serving the customer;
- (i) victuals, stores, or other necessities required by any naval military or air force authority for His Majesty's forces or required for any ship on her arrival at or immediately before her departure from a port, so long as the shop is kept open only for such time as is necessary for serving the customer.

2. The transaction after the closing hour of any post office business.

SECOND SCHEDULE.

Section 6.

**METHOD OF CALCULATING THE HOLIDAYS TO WHICH
ANY SHOP ASSISTANT IS ENTITLED UNDER SUBSECTION (3)
OF SECTION SIX OF THIS ACT.**

1. The number of extra hours for which a shop assistant has been employed in or about the business of the shop while any one or more orders have been in force under section six of this Act shall be added together, any fraction of an hour not exceeding half being treated as half an hour, and any fraction of an hour exceeding half being treated as an hour.

2. For the purposes of this Schedule the number of hours comprised in the customary working day on days other than half holidays shall be taken as the standard unit.

3. The aggregate number of the extra hours, as calculated in accordance with the provisions of paragraph 1 of this Schedule shall be divided by the standard unit, and the quotient, fractions thereof being disregarded, shall be the number of the days' holiday to which the shop assistant shall be entitled.

THIRD SCHEDULE.

Section 9.

**CONSEQUENTIAL AND MINOR AMENDMENTS OF
THE SHOPS ACT, 1912.**

Enactments
amended.

Amendment.

Section 9 - For the words "to such exemptions and conditions (if any) as may be contained in closing orders" there shall be substituted the words "in so far as the prohibition is affected by any closing order, to such exemptions and conditions, if any, as may be contained in the order."

3RD SCH.
—cont.Enactments
amended.

Amendment.

Section 10 - The following subsection shall be inserted after subsection (1):—

“(1A) Where several trades and businesses are carried on in the same shop and any of those trades or businesses consist only of transactions of such a nature that if they were the only transactions carried on in the shop the provisions of this Act relating to general closing hours would not apply to the shop, the shop may be kept open after the general closing hour for the purposes of those transactions alone, subject, however, to such conditions as may be prescribed”; and in subsection (3) for the word “under” there shall be substituted the words “or any proportion or number of occupiers or of shops for the purposes of”

Section 11 - The following subsection shall be inserted after subsection (1):—

(1A) Any order made under this section may be made so as to apply to the whole or to any part of the area of the local authority, and to all shops, or to shops of any class, within that area or part.

Section 10.

FOURTH SCHEDULE.

ENACTMENTS REPEALED.

Session and Chapter.	Short title.	Extent of Repeal.
2 Geo. 5. c. 3 -	The Shops Act, 1912 -	In section five, sub-sections (4) and (5) thereof; in section twelve, paragraph (c) of sub-section (1) thereof; and the Third Schedule.
10 & 11 Geo. 5. c. 58.	The Shops (Early Closing) Act, 1920.	The whole Act.
11 & 12 Geo. 5. c. 60.	The Shops (Early Closing) Act, 1920 (Amendment) Act, 1921.	The whole Act.